



Procedure No: EXP202415057 (PS/00531/2024)

RESOLUTION OF THE SANCTIONING PROCEDURE

BACKGROUND

FIRST: On 17/09/24, A.A.A. (the claimant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the entity, FRESHLY COSMETICS, S.L. with NIF: B55666143, owner of the website, <https://www.freshlycosmetics.com/es/> (hereinafter, the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The claimant states in their complaint, among other issues, that this website was fined two years ago for not having cookies properly configured, but as of today, it continues to use cookies without obtaining permission.

SECOND: On 25/10/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to report back within one month regarding the issues raised in the complaint.

THIRD: On 28/11/24, this Agency received a letter from the respondent summarizing their response regarding the "Cookie Policy" of their website:

- The complaint relates to the implementation of cookies without the proper consent of users. It was identified that when accessing the website www.freshlycosmetics.com without accepting Marketing cookies, it was possible to load a video from Youtube.com, which resulted in the installation of advertising cookies without the user's consent.
- Regarding the measures adopted: to correct this deficiency and comply with Article 22.2 of the LSSI, the following measures were implemented: Blocking the display of the embedded YouTube video for users who have not granted consent to Marketing cookies. Updating the cookie policy and its dynamic implementation with automated tools, and modifying the landing page to reflect these changes.
- Regarding the cause of the incident: The internal analysis revealed that this problem did not stem from a deliberate action by Freshly Cosmetics, but from an omission in the controls for implementing third-party cookies. Consequently, audits were strengthened to ensure regulatory compliance, updating their cookie policy and integrating an automatic update system with Cookiebot. The visible information on the website has been modified, and as of December 5, 2024, the blocking of embedded videos for users without consent has been implemented.

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FOURTH: On 29/11/24, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LOPDGDD.

FIFTH: On 05/12/24, this Agency obtained and processed the following characteristics of the "Cookie Policy" of the website, <https://www.freshlycosmetics.com/es/>:

1st.- Regarding the use of cookies prior to consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it is verified that the following cookies are installed:

a).- Technical or necessary cookies:

Cookie and Domain

Description (purpose of the cookie)

PHPSESSID

Domain:

.freshlycosmetics.com

Cookie generated by applications based on the PHP language. It is used to maintain the user's session variables. It is usually a randomly generated number; the way it is used may be site-specific, but a good example is maintaining the login state of a user.

AWSALB

Domain:

.freshlycosmetics.com

Assigns server traffic to ensure the user experience is as smooth as possible. A so-called load balancer is used to determine which server has the best availability.

AWSALBCORS

Domain:

.freshlycosmetics.com

Manages the distribution of network traffic to backend servers efficiently. Its main function is to maintain the persistence of the user's session, ensuring that all requests from the same user during a session are directed to the same backend server.

AEC

Domain:

.google.com

Used by Google to ensure security in user interactions with its services, preventing malicious activities such as spam, fraud, and abuse. This cookie helps maintain the integrity of forms and login sessions, ensuring that the...

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Cookie and Domain

Description (purpose of the cookie)

Requests come from legitimate users and not from malicious actors. It stores information that allows Google to differentiate between human users and potential automated threats, protecting both the user and the service from possible attacks or misuse. It is a third-party cookie since it is set and managed by Google, belongs to Google's domain, and is classified as a third-party cookie.

b).- Performance Cookies: These are a type of cookie that collects information about how users interact with a website, allowing the website owner to improve its functionality. These cookies collect statistical data, such as pages visited, the time users spend on each page, errors or technical failures that may occur, or metrics related to site performance, etc. However, since it concerns information about how users interact with the website and although it does not collect information that directly identifies the user, the behavior may be considered personal data if linked to an IP address.

Cookie and Domain

Description (purpose of the cookie)

AB_CHECKOUT

Domain:

.freshlycosmetics.com

It is used to conduct A/B testing on the Freshly Cosmetics checkout page. A/B testing involves showing different versions of a page or element to different segments of users to evaluate which one performs better in terms of conversion or other specific objectives. Its purpose is to optimize the payment experience by assigning users different versions of the checkout page; the cookie allows analyzing which one provides a better user experience and higher conversion rates. The results obtained from these tests inform about which design or content is more effective, guiding improvements in the checkout process interface.

AB_SHIPMENTCOST

It is designed to conduct A/B testing on the shipping cost section of the website. Different versions of a page or component are shown to different groups of users to determine which one offers better performance in terms of conversion and customer satisfaction.

c).- Targeting Cookies: Also known as advertising or targeting cookies, these are a type of cookie designed to collect information about the user's browsing habits with the aim of showing personalized and relevant advertising. These cookies allow creating a user profile based on the pages visited; frequency and duration of visits; specific actions taken on a website (clicks, purchases, etc.); geographic location, etc.

Cookie and Domain

Description (purpose of the cookie)

_dyjsession

Domain:

.freshlycosmetics.com

It is associated with Dynamic Yield, a personalization platform that allows websites to offer real-time tailored user experiences. This cookie is used to identify the user's current session, facilitating the delivery of personalized content and recommendations based on their behavior during the visit.

_dyid

Domain:

.freshlycosmetics.com

It is associated with Dynamic Yield, a personalization platform that allows websites to offer real-time tailored user experiences. This cookie stores a unique identifier for each visitor, facilitating content personalization and the collection of data about user behavior on the website.

DYID

Domain:

.dynamicyield.com

It is associated with Dynamic Yield, a personalization platform that allows websites to offer real-time tailored experiences. This cookie stores a unique identifier for each visitor, facilitating content personalization and the collection of data about user behavior on the website. The cookie assigns a unique identifier to each visitor, allowing Dynamic Yield to recognize individual users and adapt content according to their preferences and behavior.

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Cookie and Domain

Description (purpose of the cookie)

previous actions. The cookie is set under the domain dynamicyield.com, classifying it as a third-party cookie.

_dyid_server

Domain:

.freshlycosmetics.com

It is associated with Dynamic Yield, a personalization platform that allows websites to offer real-time tailored experiences. Its main function is to store a unique user identifier, similar to the _dyid cookie, but with the difference that _dyid_server is set from the website's server, making it a first-party cookie. It stores a unique identifier that allows Dynamic Yield to recognize users during their visits to the website, facilitating the continuous personalization of the user experience. By being set from the website's domain server, _dyid_server bypasses browser restrictions on third-party cookies, ensuring a more consistent user identification.

d).- Preference or personalization cookies: Cookies used to enhance the user experience on a website by remembering certain preferences and customized settings. These cookies allow the website to offer

advanced or specific features that make navigation smoother and more convenient.

These cookies will be exempt from the obligations of Article 22.2 of the LSSI as they are considered a service expressly requested by the user, provided that it is the user themselves who chooses those preferences and customized settings, and as long as the cookies solely comply with the selected purpose, as established by the AEPD Cookie Guide.

Cookie and Domain

Description (purpose of the cookie)

session-summary-oct8ne

Domain:

.freshlycosmetics.com

This cookie is used to store information about the user's session, including summary statistics and interactions within the session, to improve the user experience and the functionality of the site.

oct8ne-visitor

Domain:

.freshlycosmetics.com

This cookie is used to track visitors' interactions with the website's live chat feature. It helps provide personalized support and understand visitors' preferences.

oct8ne-room

Domain:

.freshlycosmetics.com

It is used to facilitate customer service and live chat functionalities on the website. Its goal is to enhance the user experience by enabling direct communication and support.

oct8ne-first-enter

Domain:

.freshlycosmetics.com

This cookie is used to remember the first time a user enters the site using the Oct8ne service to improve the user experience by customizing content and support.

oct8ne-status

Domain:

.freshlycosmetics.com

This cookie is used to store the session status and user preferences when interacting with the support and customer service chat feature, ensuring a consistent and effective live chat experience.

oct8ne-visitor-overflow

Domain:

.freshlycosmetics.com

This cookie is used to ensure that a visitor can successfully interact with the customer service and support features provided on the website, maintaining session states.

oct8ne-connection

Domain:

.freshlycosmetics.com

This cookie is used to manage the user's session and communication with the support service, ensuring a persistent and consistent experience during a browsing session.

oct8ne-last-interaction

Domain:

.freshlycosmetics.com

This cookie tracks the last interaction a user had with the Oct8ne live chat service to improve service and customer experience by providing personalized assistance.

PrestaShop-8aca4-f50c3b3115a60b7b2768d36938465b79

Domain:

.freshlycosmetics.com

It is a cookie generated by the PrestaShop online store management system. Its main function is to store information related to the user's session. It stores data such as session identifier, language preferences, selected currency, and products added to the shopping cart. This allows the user's

choices and actions to be maintained while navigating the site, improving usability and continuity in the shopping experience.

_Secure-ENID

Domain:

Google.com

It is used by Google to remember user preferences and other information, such as preferred language, the number of results displayed on a search page, and the activation of the SafeSearch filter.

It allows remembering settings such as the selected language, the number of search results per page, and the activation of security filters. Since it is managed by Google, the cookie is considered a third-party cookie.

style_test

Domain:

.freshlycosmetics.com

Used to store the style or design preferences selected by the user on the Freshly Cosmetics website.

Its purpose is to enhance the user experience by remembering specific settings related to the appearance of the site. It saves the user's choices regarding themes, colors, or layouts of elements on the page, allowing these preferences to be maintained on future visits.

2nd.- About the cookie information banner on the first layer:

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Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the webpage, a cookie information banner appears with the following message:

Cookie Policy:

We use our own and third-party cookies to understand the uses of our online store and to improve it, adapt the content to your preferences, and personalize our ads, marketing, and social media posts.

You can accept all cookies, reject them, or choose your settings by clicking the corresponding buttons. Please note that rejecting cookies may affect your shopping experience. For more information, you can consult our <> <> <>

Options regarding the use of cookies:

a).- If consent is to be given:

If the user wishes to have cookies installed on their terminal equipment by clicking the option (<>), it is verified how the website starts to use, in addition to the cookies detected before giving consent (all of which are indicated in point 1.a), other cookies, both own and third-party (indicated in the diligence).

b).- If consent is not to be given:

If the user opts not to give consent to the use of cookies that are not technical or necessary by clicking on the option <>, the website displays a control panel where the cookie groups are pre-checked in the "ON" position. This means accepting, by default, the use of cookies that are not technical.

If consent is not to be given, it is necessary to uncheck the cookie groups from the "ON" position to the "OFF" position and then click on the option <>. Once this option is clicked, it is verified how the website continues to use cookies that are not strictly technical or necessary, such as the targeting cookie: DYD and the performance cookie: AB_CHECKOUT.

3.- Regarding the possibility of modifying the consent given for cookies at any time during web browsing.

At this point, if the user wishes to modify consent at a certain moment during web browsing, there is NO possibility to access the cookie control panel again to modify the consent once it has been given.

In the information provided in the "Cookie Policy" of the website,

<https://www.freshlycosmetics.com/es/politica-cookies>, it is indicated regarding the modification of consent as follows:

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How to modify cookie settings: The user can restrict, block, or delete cookies from Freshly Cosmetics, S.L. or any other website from their browser. The procedure varies by browser; you can find out how to do this in the help menu of your browser, which outlines the procedure for deletion. For more information, you can access the following websites: Google Chrome: (...); Mozilla Firefox: (...); Safari: (...). Disabling cookies may cause the website not to function properly or prevent access to certain features.

4.- Regarding the information provided in the "Cookie Policy":

If you access the "Cookie Policy" through the link at the bottom of the main page, the website redirects the user to a new page <https://www.freshlycosmetics.com/es/politica-cookies> where information is provided about: what cookies are; what the information collected through cookies is used for; what types of cookies exist and which cookies the website uses, and how to manage cookies through the mechanisms available in the browser installed on the terminal equipment.

In conclusion, the following characteristics can be highlighted:

a).- Regarding the installation of cookies on the terminal equipment prior to consent:

Upon entering the main page and without taking any action on it or accepting cookies, cookies that are not of a technical nature are used, such as performance cookies, AB_CHECKOUT and AB_SHIPMENTCOST, and targeting cookies, _dyjsession; _dyid; DYID and _dyid_server.

b).- Regarding the cookie information banner present on the main page:

In the cookie information banner present on the first layer of the website, the purposes for which cookies will be used are generically identified, and whether they are own or also third-party cookies.

c).- Regarding consent to the installation of cookies on the terminal equipment:

If you access the control panel to manage the use of cookies, it is verified how the cookie groups are pre-checked in the "ON" option (accept cookies). If you wish to reject the use of cookies, moving the sliders of the cookie groups from the "ON" position to the "OFF" position, it is verified how the website continues to use cookies that are not of a technical nature, such as the targeting cookie, DYD and the performance cookie, AB_CHECKOUT.

d).- Regarding the possibility of modifying the consent given for cookies at any time during web browsing.

There is NO mechanism that allows for the modification of consent to the installation of cookies once given.

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e) Regarding the information about cookies provided in the "Cookie Policy":

Information is provided on what cookies are; the purpose of the information collected through cookies; what types of cookies exist and which cookies are used by the website, as well as how to manage cookies through the mechanisms available in the browser installed on the terminal equipment.

SIXTH: On 20/12/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violation of Article 22.2 of the LSSI, classified as "minor" in Article 38.4 g) of the aforementioned regulation, due to the deficiencies detected regarding the cookie policy on the website <https://www.freshlycosmetics.com/es/>, namely: - the use of cookies that are not of a technical or necessary nature without the prior consent of the user, - the use of such cookies even after the user has rejected their use, and - the impossibility of modifying consent at any time during

web browsing when the user wishes to do so.

The notification of the initiation of the file was carried out in accordance with the rules established in the LPACAP, through electronic notification, with access to the content of the notification occurring on 23/12/24, as recorded in the file, and no written allegations regarding the initiation of the file have been received by this Agency.

SEVENTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received regarding the initiation of the file in this Agency.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the violation of the LSSI attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution. In light of all that has been acted upon by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

First: It has been confirmed that, upon first accessing the website

<https://www.freshlycosmetics.com/es/>, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action.

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Regarding this, the following non-technical cookies were used prior to the user's consent:

- Performance cookies: AB_CHECKOUT and AB_SHIPMENTCOST and
- Targeting cookies: _dyjsession; _dyid; DYID and _dyid_server.

Second: It has been verified that in the initial banner of the website in question, the purposes for which cookies will be used are generically identified, and whether they are first-party or third-party cookies. In this banner, there is only the option to accept cookies or the option to redirect to the control panel for their management. It is confirmed that when accessing the control panel, the groups of cookies are pre-checked in the "ON" option or acceptance of non-technical or necessary cookies by default. It is also confirmed that if one wished to reject the use of cookies, the sliders for the cookie groups had to be moved from the "ON" position to the "OFF" position, and the selection had to be accepted; however, it was verified that if this operation was performed, the website continued to use non-technical cookies such as the targeting cookie, DYD, and the performance cookie, AB_CHECKOUT.

Third: It has been confirmed that it is not possible to modify the consent given for the use of non-technical or necessary cookies at any time during web navigation, as there is no permanent link that redirects the user to the control panel to perform this operation.

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Deficiencies detected in the Cookie Policy of the website

<https://www.freshlycosmetics.com/es/>

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First: Regarding the installation of cookies on the terminal equipment prior to consent.

Let us remember that cookies are small text files that websites store on the user's device (computer, mobile, tablet) through the browser. These cookies are used to store information about the user's interaction with the webpage, for various purposes such as improving the user experience, remembering settings or preferences, or conducting statistical analysis or usage preferences of the site, potentially creating user profiles.

Article 22.2 of the LSSI establishes that users must be provided with clear and complete information about the use of devices or methods for storing and retrieving data and, in particular, about the purposes of processing that data. This information must be provided in accordance with the provisions of the GDPR.

Regarding the use of cookies, when it involves processing that allows for the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations. However, it is necessary to point out that those cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user would be exempt from compliance with the obligations established in Article 22.2 of the LSSI.

In this regard, the Article 29 Working Party, in its Opinion 4/2012, interpreted that, apart from technical cookies, the exempted cookies would include user input cookies (those used to fill out forms or manage a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface customization cookies; and some plug-in cookies for sharing social content.

These cookies would be excluded from the scope of application of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. Conversely, it will be necessary to inform and obtain the prior consent of the user before the use of any other type of cookies, whether first-party or third-party, session or persistent.

In this case, during the inspection carried out on the website in question, it was detected that upon accessing it for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on it, the following non-technical cookies were used prior to the user's consent: performance cookies: AB_CHECKOUT and AB_SHIPMENTCOST and targeting cookies: _dyjsession; _dyid; DYID and _dyid_server.

Second: Regarding consent for the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it will be necessary to obtain the user's consent explicitly. This consent can be obtained by clicking on "accept" or inferring it from an unequivocal action taken by the user.

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user that indicates that consent has been unequivocally given. Therefore, mere inactivity of the user, scrolling, or navigating the website will not be considered, for these purposes, a clear affirmative action under any circumstances and will not imply the granting of consent by itself. Similarly, access to the second layer if the information is presented in layers, as well as the necessary navigation for the user to manage their preferences regarding cookies in the control panel, is also not considered an active behavior from which acceptance of cookies can be derived.

The existence of "Cookie Walls" is also not permitted, that is, pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without offering the user any alternative that allows them to freely manage their preferences regarding the use of cookies.

If the option is to go to a second layer or cookie control panel, the link must take the user directly to that configuration panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented, one to accept all cookies and another to reject them all. If the user saves their choice without having selected any cookies, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes in favor of accepting cookies are not admissible under any circumstances.

If for cookie configuration, the website refers to the settings of the browser installed on the terminal equipment, this option could be considered complementary for obtaining consent, but not as the only mechanism. Therefore, if the publisher opts for this option, they must also offer, in any case, a mechanism that allows the rejection of the use of cookies and/or to do so in a granular manner.

On the other hand, the withdrawal of previously granted consent by the user must be possible at any time. To this end, the publisher must provide a mechanism that allows for easy withdrawal of consent at any time. It will be considered that this ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

If the publisher's cookie management or configuration system does not allow for the prevention of the use of third-party cookies once accepted by the user, information will be provided about the tools offered by the browser and third parties, warning that if the user accepts third-party cookies and subsequently wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose.

In the case at hand, it was verified that in the initial banner there was only the option to accept cookies or the option to redirect to the control panel for their management (reject cookies). It was verified that upon accessing the control panel to manage the use of cookies, the cookie groups were pre-checked in the "ON" option (acceptance of non-technical or necessary cookies by default).

If the use of cookies was to be rejected, the cursors of the cookie groups had to be moved from the "ON" position to the "OFF" position, and the selection had to be accepted; however, it was found that if this operation was performed, the website continued to use cookies that were not of a technical nature, such as the targeting cookie, DYD, and the performance cookie, AB_CHECKOUT.

Third: On the possibility of modifying or withdrawing consent for the use of cookies once granted by the user.

Users must be able to withdraw the previously granted consent at any time. To this end, the publisher must ensure that it provides information to users in its cookie policy on how they can withdraw consent. The user must be able to revoke consent easily. The system offered for withdrawing consent must be as easy as the one used when consent was given. It will be considered that such ease exists, for example, when the user has simple and permanent access to the cookie management or configuration

system.

In this case, it is not possible to modify the consent granted for the use of non-technical or necessary cookies at any time during web browsing, as there is no permanent link redirecting the user to the control panel to perform this operation.

III

Unfulfilled Obligation

From the deficiencies detected regarding the cookie policy on the website

<https://www.freshlycosmetics.com/es/>, namely:

- the use of cookies that are not of a technical or necessary nature without the prior consent of the user,
- the use of such cookies even after the user has rejected their use, and
- the impossibility of modifying consent at any time during web browsing when the user wishes to do so,

The aforementioned defects imply, on the part of the respondent, a violation of Article 22.2 of the LSSI, as it establishes the following:

“Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, about the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

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The above shall not prevent the possible storage or technical access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent strictly necessary, for the provision of an information society service expressly requested by the recipient.”

IV.

Classification of the infringement of Article 22.2 of the LSSI

This infringement is classified as “minor” in Article 38.4 g) of the aforementioned Law, which considers as such:

“Using data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.”

For its part, Article 39.1.c), “Sanctions,” establishes that:

“1. For the commission of the infringements set out in the previous article, the following sanctions will be imposed: c) For the commission of minor infringements, a fine of up to 30,000 euros.”

V.

Graduation of the Sanction

The LSSI, in its Article 40, establishes the “graduation of the amount of sanctions,” taking into account the following criteria: a) The existence of intent. b) The period of time during which the infringement has been committed. c) The recurrence of the commission of infringements of the same nature, when declared by a firm resolution. d) The nature and amount of the damages caused. e) The benefits obtained from the infringement. f) The volume of billing affected by the committed infringement. g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, it is considered appropriate to graduate the sanction to be imposed according to the aggravating factor of recurrence for the commission of infringements of the same nature, when declared by a firm resolution (section c), as it is confirmed that, on 03/02/23, a resolution was issued by the Director of the Spanish Data Protection Agency regarding file PS/00315/2022, for

the use of third-party cookies that were not of a technical or necessary nature and the impossibility of rejecting third-party cookies, in addition to the lack of information in the "Cookie Policy" of the website. According to these criteria, it is deemed appropriate to impose, for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on the website owned by the respondent, a sanction of 10,000 euros (ten thousand euros).

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Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection,
RESOLVES:

FIRST: TO IMPOSE on the entity FRESHLY COSMETICS, S.L. with NIF: B55666143, holder of the website, <https://www.freshlycosmetics.com/es/> for the violation of Article 22.2 of the LSSI, classified as "minor" in Article 38.4 g) of the aforementioned regulation, a fine of 10,000 euros (ten thousand euros).

SECOND: TO NOTIFY this resolution to FRESHLY COSMETICS, S.L.

THIRD: To warn the sanctioned party that the imposed fine must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. or, failing that, the collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must

formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

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the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Lorenzo Cotino Hueso,
President of the Spanish Agency for Data Protection.
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